

→ discretion of court - with restrict.

* Amendment of Pleadings - O6 R17

R17 - (1) court may at any stage of the proceedings - allow - either party to alter/amend his pleadings - in such manner/ terms as may be just. All such amendments shall be made as may be necessary for the purpose of determining the real questions in controversy b/w the parties.

Provided - no appⁿ for amend. shall be allowed after trial has commenced unless court comes to conclusⁿ that despite due diligence, party could not have raised the matter before the commencement of trial.

(1)

→ Abdul Rehman v. Mohd. Rulde 2012 - after trial commences - court to look into the merits of case + if due diligence & necessary to determine real questⁿ in controversy. Provided no injustice/prejudice to other party.

→ Chopper v. Smith - object - Rts. of parties, not punish for errors.

- can't replace COA, change nature of suit
- Allowed where interest of all parties served, to ↓ further litigⁿ, to pass comprehensive judgment.
- identity of suit shall remain unchanged but may amend to explain/clarify COA.

(2)

Salem Advocates case - liberal interpretⁿ of proviso. Purpose of proviso is to avoid unnecessary delay, prejudice to other party + frivolous appⁿ but if court finds that amend. could have been raised earlier but applicant acted in due diligence, court shall allow the amend.

- look for interest of justice.

Court has to balance -

(1) Suit shall be comprehensively decided & just decision in a suit requires that all the issues and the reliefs shall be

raised in the same suit.

- ② A party should not be allowed the benefit of his own negligence & opposite party should not suffer because of it.

When amend. can be allowed? -

- ① Bonafide mistake / parties described wrongly / court can compensate mistake.

- ② Change in circumstances.

- ③ No injustice to other side + real controversy -

Kisandas V. Rachappa Vitthoba

- ④ To avoid multiplicity of proceedings - Paragon Rubber Ind. V. Pragathi Rubber Mills.

Am Prakash Gupta V. Ranbir B. Goyal 2002 SC - In course of proceedings, change in substantive & procedural law.

Retrospective - amend. allowed if affects COA.

procedural law is not pleaded
∴ no amend. unless change in
juris, lmt.

Prospective - X as it does not affect COA of P.

Reva Jutu Builders V. Narayanam Swami 2009 SC -

Interest of justice, not malafide. Even at a later stage ✓ Amend. to add relief ✓ Amend. will relate back to the date of filing of suit, bar of lmt can be avoided.

When amend. is not allowed? -

- ① Malafide, no good faith.

- ② If amend. seeks to take away legally acq. rt. of other party - Weldam V. Neil

Andhra Bank V. ABN Amro Bank 2007 SC - if opposite party has altered his position due to earlier pleadings to such an extent that now his position cannot

'Real controversy test'

be reversed & money compensⁿ will not be adequate - not allowed.

③ changes fundamental character of suit - Steward v. North Metropolitan Mainway Co.

④ - Usha Balasahab Swamy v. Kiram Appasao Swami 2007 SC - inconsistent pleading not allowed. Allowed only if found not to be mutually destructive, estoppel bars change of position.

Admⁿ in a pleadings and subseq. amend. to subtract from such admⁿ not generally allowed unless party proves fraud.

** Merits of a case not to be considered -

Sampath Krishna v. Pyya Ramu 2002 SC - merits decided on pleadings, merits not to be judged.

** No appeal - not a decree / appealable order. Revision ✓
to eff. adj. - no prj. to opp. party

* LIC v. Bhanuben Builders 2022 - All amend. allowed to determine real quesⁿ in controversy provided it does not cause injustice / prejudice to the other side. Parties can't seek to withdraw any clear admⁿ made by the party which confers Rt. on ans. through amend. To raise a time barred claim X, changes nature of suit X.

no hypertechnical approach.

✓ esp. where compⁿ by cost payable

Basavaraj v. Indira 2024 - proviso. After suit conven-
ced, only if despite due diligence - amend. could not have been brought earlier, mistake - no ground.

M. Revanna v. Anjanamma - no amend. where it seeks to intro-
totally different, new & inconsistent case / changes fundamental character of suit. No amend. where prejudices I of other party.

to ratify absence of material part. of plaint ✓. mutually destructive

Shivashankara v. Vedaryasa Char 2023.

Ganesh Prasad v. Rajeshwar Prasad 2023 - attigⁿ of facts not allowed to be incorporated through amendment. Camlin